



RISE & SHINE ABA LLC

Empowering children to reach their full potential

EMERGENCY & INCIDENT REPORTING POLICY

with Incident Report Form · Document v2.0 · Effective May 2026

1. Purpose

This Policy ensures that all Rise & Shine ABA employees and contractors understand their responsibility to identify, report, and document emergencies, safety concerns, and incidents involving clients, families, staff, or company property. Prompt and accurate reporting protects the health and safety of those we serve, allows us to learn and improve, and meets our obligations under HIPAA, BACB ethics, payer contracts, and state law.

2. What Must Be Reported

You must report immediately, before leaving the location, if any of the following occurs during work hours, sessions, or company activity:

- **Client injury or medical emergency** (any injury, regardless of severity)
- **Staff injury or workplace accident**
- **Suspected abuse, neglect, or maltreatment** (also triggers Mandated Reporter obligation — see §6)
- **Behavioral incident requiring emergency intervention** (elopement, aggression resulting in injury, severe self-injury, ingestion of harmful substance)
- **Client elopement** (client leaves a safe area)
- **Suspected HIPAA breach** (loss/theft of device, unauthorized disclosure, mistaken email recipient)
- **Property damage or theft**
- **Safety hazards** (environmental, equipment, or security)
- **Allegations of misconduct against any staff member**
- **Any motor vehicle accident in the course of work or while traveling between sessions**
- **Any event you reasonably believe could compromise client or staff safety**

3. Reporting Procedure

Step 1 — Immediate Response

1. **If urgent, call 911 first.** Your first priority is the safety of the client or person at risk.

424 Grandview Avenue, Staten Island, NY 10303 · (929) 460-9600 · info@riseandshine.nyc · www.riseandshine.nyc

2. **If the incident involves suspected child abuse, neglect, or maltreatment**, call the New York State Central Register at 1-800-342-3720 (or the appropriate state hotline if outside NY — see Mandated Reporter list).
3. Notify your supervising BCBA and Case Coordinator by phone as soon as the immediate situation is stable — no later than 1 hour after the event.
4. If possible, remain at the location and document the scene (without photographing or recording any client without written authorization).

Step 2 — Written Report

1. Complete the **Incident Report Form** (attached on the next page) **within 24 hours** of the incident — sooner if the incident involves serious injury, suspected abuse, or potential HIPAA breach.
2. Submit the completed form to your supervising BCBA and to the Director of Operations.
3. Maintain a copy in the secure location designated by your supervisor. Do not send the form by personal email or store it on personal devices.

Step 3 — Follow-Up

1. Cooperate fully with internal investigations, root-cause analysis, corrective actions, and any required reports to families, payers, regulators, or law enforcement.
2. Participate in any debrief, training, or process change that results from the incident.
3. Maintain confidentiality about the incident outside of authorized internal personnel.

4. Confidentiality

Incident reports are confidential and used only for safety, compliance, and quality-improvement purposes. Information may be shared, only as required, with: parents/guardians of affected clients; supervising BCBA's and clinical leadership; the Compliance Officer; insurers; payers; child-protective services; law enforcement; and state regulatory agencies. The identity of a reporter who in good faith raises a concern about misconduct will be kept confidential to the maximum extent permitted by law.

5. No Retaliation

Rise & Shine ABA strictly prohibits retaliation against any employee or contractor who in good faith reports an incident, raises a safety concern, refuses to engage in conduct they reasonably believe is illegal, or cooperates in an investigation. **Retaliation is itself a separate violation that may result in discipline up to and including termination.**

6. Mandated Reporter Reminder

All Rise & Shine ABA staff working with minors are Mandated Reporters under New York Social Services Law and corresponding laws in NJ, PA, CT, and FL. If you suspect abuse, neglect, or maltreatment, you

have an independent legal obligation to report directly to the appropriate state agency. You are not required to obtain supervisor approval before reporting, and good-faith reports are protected by law.

New York State Central Register: 1-800-342-3720 (24 hours)

Childhelp National Hotline: 1-800-4-A-CHILD

7. Failure to Report

Failure to report a reportable incident — whether by silence, delay, or incomplete information — may result in disciplinary action up to and including termination, and may carry personal civil or criminal liability under New York Mandated Reporter statutes.

8. Acknowledgment

By signing below, I confirm that:

- I have read and understood the Emergency & Incident Reporting Policy.
- I understand my responsibilities, including Mandated Reporter obligations.
- I will follow the reporting procedures outlined above.
- I understand that failure to report incidents may result in disciplinary action and personal legal liability.

Employee/Contractor Full Name (Print)

Date

Position / Title

Signature



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INCIDENT REPORT FORM

Complete within 24 hours of the incident · Submit to supervising BCBA and Director of Operations

Section A — Reporter Information

Reporter Name (Print):

Position / Title:

Phone:

Email:

Date Report Completed:

Section B — Incident Details

Date of Incident:

Time of Incident:

Location (full address or facility):

Client Name (if applicable):

Client DOB:

Supervising BCBA:

Section C — Type of Incident

Check all that apply:

- ☐ Client injury ☐ Staff injury ☐ Medical emergency
- ☐ Suspected abuse / neglect / maltreatment
- ☐ Behavioral incident (aggression, self-injury, property destruction)
- ☐ Client elopement ☐ Vehicle accident
- ☐ HIPAA / privacy incident ☐ Property damage / theft
- ☐ Safety hazard ☐ Allegation of misconduct

- ☐ Other (describe in Section D)

Section D — Description of Incident

Describe what happened in objective, factual detail. Avoid opinion or speculation. Include: what occurred, who was involved, what was said and done, any antecedent events, the response taken, and the current status. Use additional pages if needed.

[illegible]

Section E — Witnesses

Witness 1 Name & Contact:

Witness 2 Name & Contact:

Section F — Immediate Response Taken

Describe what was done at the time of the incident — first aid, 911 call, parent notification, BCBA notification, etc.

Section G — Notifications Made

- ☐ 911 / Emergency Services — Time: _____
- ☐ Parent / Guardian — Time: _____ By whom: _____
- ☐ Supervising BCBA — Time: _____ By whom: _____
- ☐ Case Coordinator — Time: _____
- ☐ Director of Operations — Time: _____
- ☐ Compliance Officer (HIPAA incidents) — Time: _____
- ☐ NY State Central Register / Mandated Reporter Hotline — Time: _____
- ☐ Other (specify): _____

Section H — Reporter Signature

I certify that the information above is accurate and complete to the best of my knowledge.

Reporter Signature

Date

Section I — Office Use Only

Date Received by Director of Ops:

Reviewed By (Name / Title):

Investigation Required: ☐ Yes ☐ No

Investigation Findings (summary):

Corrective Action Taken:

External Reporting Required (state agency, payer, parent): ☐ Yes ☐ No

Date External Report Submitted:

Case Closed Date:

Director of Operations Signature

Date
